to assure that this heating oil will be distributed in such manner as to alleviate to the maximum extent any shortage conditions which may exist.

SEC. 2. *Definitions.* (a) "Person" means any individual, corporation, partnership, association, or any other organized group of persons, or legal successor or representative of the foregoing, and includes the United States or any agency thereof, or any other Government, or any of its political subdivisions, or any agency of the foregoing.

(b) "Heating oil" means those grades of the middle distillates of petroleum suitable for burning for heating purposes and includes kerosene.

(c) "Reseller" means any person, other than a participant, who normally receives deliveries of heating oil by barge or tanker and who is engaged in supplying heating oil in or to the affected area.

(d) "Affected area" means any area in PAD District No. 1, north of the State of North Carolina, which the Administrator, from time to time, may designate as requiring additional supplies of heating oil.

(e) "PAD" means the Petroleum Administration for Defense.

(f) PAD District No. 1 includes only the States of Maine, New Hampshire, Vermont, Massachusetts, Rhode Island, Connecticut, New York, New Jersey, Delaware, Pennsylvania, Maryland, Virginia, West Virginia, North Carolina, South Carolina, Georgia, Florida, and the District of Columbia.

(g) "Administrator" means the Secretary of the Interior and the Petroleum Administrator for Defense, the Deputy Administrator, or such official of PAD as may be designated to act as Deputy Administrator.

(h) "Participant" means any person named in Appendix A.

(i) "Delivery order" means that document issued by the Administrator which specifies the quantity and grade of heating oil which a reseller shall be entitled to purchase from a participant.

SEC. 3. *Application for assistance.* (a) Any reseller who can demonstrate actual and existing demands for heating oil which exceed the supplies currently available to him, or anticipated to be available to him during the balance of the 1951–52 heating season, may apply for assistance under this instruction. Any such application shall be made on Form PAD 65, entitled "Application for Additional Heating Oil Supplies—East Coast". Each application shall be filed in duplicate and addressed to:

The Petroleum Administration for Defense,
Room 906, Building A, 270 Park Avenue,
New York 17, New York,
Ref: Supply & Transportation.

(b) Applications may be filed on or after February 18, 1952. Each application shall be completed in accordance with the instructions incorporated in the form.

SEC. 4. *Disposition of Application.* (a) Each application filed pursuant to section 3 will be considered by PAD and a determination reached as to whether or not the applicant is entitled to assistance. In the event that a determination is made that a reseller is entitled to additional supplies of heating oil, action will be taken to make available such additional supplies from a participant or participants. The reseller will then be notified, by means of a delivery order issued by PAD, as to the participant or participants from whom he may obtain the necessary additional supplies, including the grade and quantity which may be obtained.

(b) Within a period of five days after receipt of the delivery order, the purchasing reseller to whom the delivery order is issued may, on the basis of such delivery order, enter into a sales contract with the named participant(s) specified therein, at the participant's regularly established prices and terms of sale or payment; provided, that the reseller shall not be obligated under such contract to resell under any brand name any of the product so purchased. If a reseller to whom a delivery order has been issued fails within such 5-day period to enter into such sales contract, the delivery order shall be of no force or effect.

(c) All sales pursuant to a delivery order shall be made at the participant's price ceiling in effect at the time and for the place and type of delivery.

(d) In the event that the PAD, on the basis of the data submitted by a reseller, determines that such reseller is not entitled to assistance, the reseller will be notified promptly of that fact.

SEC. 5. *Request for reconsideration.* Any reseller who has been notified by PAD that no delivery order can be issued to him may request reconsideration. Requests for reconsideration must be filed by letter in duplicate and submitted to the New York office of PAD at the address and in the manner specified in section 3 above for the original application. In requesting reconsideration, the reseller should make reference to his original application number and the PAD case number, if any. He should submit in detail such additional facts as, in his opinion, entitle him to the assistance originally requested.

SEC. 6. *Records, reports and forms.* (a) Each person participating in any transaction covered by this order shall retain in his files, for at least 2 years, records of receipts, deliveries, inventory, and use, in sufficient detail to permit an audit that determines for each transaction that the provisions of this instruction have been met. This does not specify any particular accounting method, nor does it require alteration of the system of records customarily maintained, provided the system provides an adequate basis for audit. Records may be retained in the form of microfilm or other photographic copy instead of the original.

(b) All records required by this instruction shall be made available at the usual place of business where maintained for inspection and audit by duly authorized representatives of the PAD.

(c) Persons subject to this order shall make such records and submit such reports to PAD as it shall require subject to the terms of the Federal Reports Act of 1942 (56 Stat. 1078; 5 U. S. C. sec. 139–139f).

SEC. 7. *Defense against claims for damages.* No person shall be held liable for damages or penalties for any default under contract or order which shall result directly or indirectly from compliance with this instruction of PAD, or any direction, directive or other instruction issued pursuant thereto, notwithstanding that such instruction, direction, directive or other instruction of the PAD shall thereafter be declared invalid by judicial or other competent authority.

SEC. 8. *Violations.* Any person who willfully violates any provision of this instruction, or who willfully conceals a material fact or furnishes false information in the course of operation under this instruction, is guilty of a crime, and upon conviction, may be punished by fine or imprisonment or both. Administrative action may be taken against such person to suspend his privilege of making or receiving further deliveries of materials or using facilities under priority or allocation control and to deprive him of further priorities assistance.

NOTE: All reporting and record-keeping requirements of this instruction have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

This instruction shall become effective at 12:01 a. m., e. s. t., February 18, 1952, and shall remain in effect until 12:01 a. m., e. s. t., May 1, 1952.

BRUCE K. BROWN,
Deputy Administrator.

APPENDIX A

Each of the following is a participant:

Atlantic Refining Company.
Cities Service Company.
Esso Standard Oil Company.
Gulf Oil Corporation.
Hess, Inc.
Pan American Petroleum & Transport Co.
Shell Oil Company.
Sinclair Refining Company.
Socony-Vacuum Oil Company.
Sun Oil Company.
The California Company.
The Texas Company.

[F. R. Doc. 52-2082; Filed, Feb. 18, 1952; 10:33 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 805]

NEVADA

WITHDRAWING PUBLIC LANDS FOR USE OF THE U. S. ATOMIC ENERGY COMMISSION; PARTIAL REVOCATION OF EXECUTIVE ORDERS NOS. 8578 AND 9019

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the public lands in the following-described areas are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the

use of the United States Atomic Energy Commission as a weapons testing site:

The Northeast Corner has coordinates: Northing, 911,554.32; Easting, 714,867.37; Latitude, 37°15'07.268"; Longitude, 115°55' 42.268".

The Southeast Corner has coordinates: Northing, 702,878.12; Easting, 716,857.43; Latitude, 36°40'43.752"; Longitude, 115°55' 37.687".

The Southwest Corner has coordinates: Northing, 700,181.12; Easting, 629,705.21; Latitude, 36°40'22.391"; Longitude, 116°13' 27.751".

The Northwest Corner has coordinates: Northing, 911,554.32; Easting, 629,705.21; Latitude, 37°15'12.534"; Longitude, 116°13' 15.615".

The above described tract will embrace the following lands if and when surveyed:

MOUNT DIABLO MERIDIAN

T. 8 S., R. 51 E.,
Secs. 13 to 15, 22 to 27, and 34 to 36.
T. 9 S., R. 51 E.,
Secs. 1 to 3, 10 to 15, 22 to 27, and 34 to 36.
T. 10 S., R. 51 E.,
Secs. 1 to 3, 10 to 15, 22 to 27, and 34 to 36.
T. 11 S., R. 51 E.,
Secs. 1 to 3, 10 to 15, 22 to 27, and 34 to 36.
T. 12 S., R. 51 E.,
Secs. 1 to 3, 10 to 15, 22 to 27, and 34 to 36.
T. 13 S., R. 51 E.,
Secs. 1 to 3, 10 to 15, 22 to 27, and 34 to 36.
T. 14 S., R. 51 E.,
Secs. 1 to 3, 10 to 15, 22 to 27, and 34 to 36.
T. 8 S., R. 52 E.,
Secs. 13 to 36.
Tps. 9 to 14 S., R. 52 E.
T. 8 S., R. 53 E.,
Secs. 13 to 36.
Tps. 9 to 14 S., R. 53 E.
T. 8 S., R. 54 E.,
Secs. 17 to 20, and 29 to 32.
T. 9 S., R. 54 E.,
Secs. 5 to 8, 17 to 20, and 29 to 32.
T. 10 S., R. 54 E.,
Secs. 5 to 8, 17 to 20, and 29 to 32.
T. 11 S., R. 54 E.,
Secs. 5 to 8, 17 to 20, and 29 to 32.
T. 12 S., R. 54 E.,
Secs. 5 to 8, 17 to 20, and 29 to 32.
T. 13 S., R. 54 E.,
Secs. 5 to 8, 17 to 20, and 29 to 32.
T. 14 S., R. 54 E.,
Secs. 5 to 8, 17 to 20, and 29 to 32.

The area described, including both public and nonpublic lands, aggregate 435,000 acres.

Beginning at a point on the south line of the Nevada Test Site at a point S. 88° 13' 39" W., 15,170' (scaled) from the Southeast corner of the Nevada Test Site as established by the Corps of Engineers on coordinates N. 702,878.12 and E. 716,857.43; thence South approximately 8,500 feet; thence West approximately 10,560 feet; thence North approximately 8,200 feet to the south line of Nevada Test Site; thence East with said south line approximately 10,600 feet to the beginning.

The above lands when surveyed will probably be Sections 2, 3, 10, and 11, T. 15 S., R. 53 E., Mount Diablo Meridian, Nevada.

The area described aggregates 2,020 acres.

Executive Orders Nos. 8578 of October 29, 1940, and 9019 of January 12, 1942, reserving public lands in Nevada for the use of the War Department as an aerial bombing and gunnery range, and as an aerial machine-gun range, respectively, are hereby revoked so far as they affect any of the above-described lands.

It is intended that the lands described above shall be returned to the administration of the Department of the Interior when they are no longer needed for the purpose for which they are reserved.

DALE E. DOTY,
Secretary of the Interior.

FEBRUARY 12, 1952.

[F. R. Doc. 52-1975; Filed, Feb. 18, 1952; 8:48 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Production and Marketing Administration

[P. & S. Docket No. 383]

ST. LOUIS NATIONAL STOCK YARDS

NOTICE OF PETITION FOR MODIFICATION OF RATE ORDER

Pursuant to the provisions of the Packers and Stockyards Act, 1921, as amended (7 U. S. C. 181 et seq.), an order dated April 6, 1951 (10 A. D. 483), as modified by an order dated November 28, 1951, authorizes assessment of the current rates and charges for a period of one year beginning on April 12, 1951.

On February 4, 1952, a petition was filed on behalf of respondents requesting authority to put into effect for a period of one year beginning April 1, 1952, a schedule of rates and charges containing certain modifications in the currently authorized rates and charges. The modifications requested are set forth below.

SELLING CHARGES

	Per head
Cattle:	
Consignments of 1 head and 1 head only	$1.50
Consignments of more than 1 head:	
First 5 head in each consignment	1.25
Next 10 head in each consignment	1.15
Each head over 15 in each consignment	1.00
Calves:	
Consignments of 1 head and 1 head only	1.00
Consignments of more than 1 head:	
First 5 head in each consignment	.70
Next 10 head in each consignment	.60
Each head over 15 in each consignment	.45

SELLING CHARGES—Continued

	Per head
Bulls:	
Bulls irrespective of the number in a consignment	$2.00
T. B. or Bangs reactors and subjects:	
Cattle and calves irrespective of weight	2.00
Hogs:	
Consignments of 1 head and 1 head only	.75
Consignments of more than 1 head:	
First 10 head in each consignment	.43
Next 15 head in each consignment	.38
Each head over 25 in each consignment	.33
Boars: 200 pounds and over	1.00
Sheep:	
Consignments of 1 head and 1 head only	.65
Consignments of more than 1 head:	
First 10 head in each 240 head in each consignment	.42
Next 50 head in each 240 head in each consignment	.29
Next 60 head in each 240 head in each consignment	.19
Next 120 head in each 240 head in each consignment	.14

MAXIMUM CHARGES

The maximum selling charge on any one rail consignment of sheep shall not exceed an amount equal to $25 multiplied by the number of single-deck cars in the consignment plus an amount equal to $35 multiplied by the number of double-deck cars in the consignment.

RESALES

	Per head
Bulls	$2.00
Cattle	.95
Calves	.50
Hogs	.33
Sheep	.30

BUYING CHARGES

Buying charges shall be the same as selling charges, with the following exceptions:

Cattle: Maximum charge on any purchase order of cattle shipped out by rail shall not exceed an amount equal to $35 multiplied by the number of cars in which the order is shipped out.

Calves: Maximum charge on any purchase order of calves shipped out by rail shall not exceed an amount equal to $35 multiplied by the number of single-deck cars plus $50 multiplied by the number of double-deck cars in which the order is shipped out.

Bulls: Maximum charge on any purchase of bulls shipped out by rail shall not exceed an amount equal to $35 multiplied by the number of cars in which the order is shipped out.

Hogs: Maximum charge on any purchase order of hogs shipped out by rail shall not exceed an amount of $25 multiplied by the number of single-deck cars plus $35 multiplied by the number of double-deck cars in which the order is shipped out.

Boars and stags only:	Per head
Purchase orders for more than 1 head:	
First 10 head in each order	$1.00
Next 15 head in each order	.90
Each head over 25 in each order	.80

The maximum charge on any purchase order of boars and stags shipped out by rail shall not exceed an amount equal to $35 multiplied by the number of single-deck cars plus $50 multiplied by the number of double-decked cars in which the order is shipped out.

Sheep: Maximum charge on any purchase order of sheep shipped out by rail shall not exceed an amount of $25 multiplied by the number of single-deck cars plus $35 multiplied by the number of double-decked cars in which the order is shipped out.

NOTE: All purchases of any species which are paid for by a commission agency, or by